

Apartment Lease Contract

This is a binding contract. Read carefully before signing.

Date of Lease Contract: May 17, 2019
(when this Lease Contract is filled out)

Moving In — General Information

1. **Parties.** This Lease Contract ("Lease") is between you, the resident(s) (*list all people signing the Lease*):
Joyclyn Dossie

and us, the owner: The Abbey At Eldridge

(name of apartment community or title holder). You are renting Apartment No. 6216, at 13101 Briar Forest Dr #6216
(street address) in Houston

(city), Texas 77077 (zip code) for use as a private residence only. The terms "you" and "your" refer to all residents listed above or, in the event of a sole resident's death, to someone authorized to act for the estate. The terms "we," "us," and "our" refer to the owner listed above and not to property managers or anyone else. **Neither we nor any of our representatives have made any oral promises, representations, or agreements. This Lease is the entire agreement between you and us.**

2. **Occupants.** The apartment will be occupied only by you and (*list all other occupants not signing the Lease*):

—and no one else. Anyone not listed here cannot stay in the apartment for more than 3 days in one week without our prior written consent, and no more than twice that many days in any one month. **If the previous space isn't filled in, 2 days total per week will be the limit.**

3. **Lease Term.** The initial term of the Lease begins on the 18th day of May (month), 2019 (year), and ends at 11:59 p.m. the 17th day of July (month), 2020 (year). After that, this Lease will automatically renew month-to-month unless either party gives at least 60 days' written notice of termination or intent to move out as required by Par. 36. **If the number of days isn't filled in, notice of at least 30 days is required.**

4. **Security Deposit.** The total security deposit for all residents is \$ 625.00, due on or before the date this Lease is signed. This amount **[check one]**: ☐ does **or** ☐ does not include an animal deposit. Any animal deposit will be designated in an animal addendum. Security-deposit refund check and any deduction itemizations will be by **[check one]**:
☒ one check jointly payable to all residents and mailed to any one resident we choose, **or**
☐ one check payable to and mailed to _____
(specify name of one resident).
If neither option is checked here, the first option applies. See Par. 40 and 41 for security-deposit return information.

5. **Keys, Move-Out, and Furniture.** You'll be given 2 apartment key(s), 2 mailbox key(s), and 1 other access devices for Gate Remote. **Before moving out, you must give our representative advance written move-out notice as stated in Par. 36.** The move-out date in your notice **[check one]**: ☐ must be the last day of the month, **or** ☒ may be the exact day designated in your notice. If neither option is checked here, the second applies. Any resident, occupant, or spouse who, according to a remaining resident's affidavit, has permanently moved out or is under court order not to enter the apartment, is (at our option) no longer entitled to occupancy, keys, or other access devices, unless authorized by court order. Your apartment will be **[check one]**: ☐ furnished **or** ☒ unfurnished.

6. **Rent and Charges.** You will pay \$ 1240.00 per month for rent, in advance and without demand **[check one]**:
☐ at the onsite manager's office
☒ through our online payment site
☐ at 24 Hour Drop Box

Prorated rent of \$ 560.00 is due for the remainder of the **[check one]**: ☐ 1st month **or** ☐ 2nd month, on the 18th day of May (month), 2019 (year).
You must pay your rent on or before the 1st day of each month (due date). There is no grace period for the payment of rent, and you agree that not paying rent on or before the 1st of each month is a material breach of this Lease. Cash is not acceptable without our prior written permission. You cannot withhold or offset rent unless authorized by law. We may, at our option, require at any time that you pay all rent and other sums in one single payment by any method we specify. If you don't pay all rent on or before the 3rd day of the month, you'll pay the reasonable initial late charge of \$ 75.00, plus the reasonable daily late charge of \$ 10.00 per day after that date until the amount due is paid in full. You agree that these late charges are a reasonable estimate of uncertain damages to us that are incapable of precise calculation and result from late payment of rent. Daily late charges cannot exceed 15 days for any single month's rent. We won't impose late charges until at least the third day of the month. You'll also pay a charge of \$ 50.00 for each returned check or rejected electronic payment, plus initial and daily late charges, until we receive acceptable payment. If you don't pay rent on time, you'll be in default and subject to all remedies under state law and this Lease.

7. **Utilities and Services.** We'll pay for the following items, if checked: ☐ gas ☐ water ☐ wastewater ☐ electricity ☐ trash/recycling ☐ cable/satellite ☐ master antenna ☐ Internet ☐ stormwater/drainage ☐ other _____

You'll pay for all other utilities and services, related deposits, and any charges or fees on such utilities and services during your Lease term. See Par. 12 for other related provisions regarding utilities and services.

8. **Insurance.** **Our insurance doesn't cover the loss of or damage to your personal property.** You are **[check one]**:
☒ required to buy and maintain renter's or liability insurance (see attached addendum), **or**
☐ not required to buy renter's or liability insurance.
If neither option is checked, insurance is not required but is still strongly recommended. Even if not required, we urge you to get your own insurance for losses due to theft, fire, water, pipe leaks, and similar occurrences. Renter's insurance doesn't cover losses due to a flood. Information on renter's insurance is available from the Texas Department of Insurance.

9. **Special Provisions.** The following or attached special provisions and any addenda or written rules furnished to you at or before signing will become a part of this Lease and will supersede any conflicting provisions of this printed Lease form.
No checks after the 10th. Please see rent concession addendum for discounts. Monthly amenity fee of \$60.00 for cable, trash, and pest control.

10. **Unlawful Early Move-Out And Reletting Charge.**
10.1 **Your Responsibility.** You'll be liable for a reletting charge of \$ 1054.00 (not to exceed 85% of the highest monthly rent during the Lease term) if you: (A) fail to move in, or fail to give written move-out notice as required in Par. 23 or 36; (B) move out without paying rent in full for the entire Lease term or renewal period; (C) move out at our demand because of your default; or (D) are judicially evicted. **The reletting charge is not a cancellation fee and does not release you from your obligations under this Lease. See the next section.**

SUMMARY OF KEY INFORMATION

The Lease will control if there's a conflict with this summary.

■ Address: 13101 Briar Forest Dr #6216 Unit # 6216
■ Beginning date of Lease (Par. 3) 05/18/2019 ■ Ending date of Lease (Par. 3) 07/17/2020
■ Number of days notice for termination (Par. 3) 60 ■ Consent for guests staying more than 3 days (Par. 2)
■ Total security deposit (Par. 4) \$ 625.00 ■ Animal deposit (if any) \$ _____
■ Security deposit (Par. 4) ☐ does **OR** ☐ does not include an animal deposit.
■ Security deposit refund check will be by (Par. 4) (**check one**) ☒ one check jointly payable to all residents (default),
OR ☐ one check payable to and mailed to _____
■ # of keys/access devices (Par. 5) for 2 unit, 2 mailbox, 1 other Gate Remote
■ Your move-out notice will terminate Lease on (Par. 5): (**check one**) ☐ last day of month **OR** ☒ exact day designated in notice
■ Check here ☐ if the dwelling is to be furnished (Par. 5) ■ Check here ☐ if there is a concession addendum
■ Rent to be paid (Par. 6): (**check all that apply**) ☐ at the onsite manager's office, ☒ through our online payment site, **OR**
☐ at 24 Hour Drop Box
■ Check here if included in monthly rent: ☐ garage, ☐ storage, ☐ carport, ☐ washer/dryer, or ☐ other _____
■ Total monthly rent (Par. 6) \$ 1240.00 ■ Prorated rent (Par. 6) for (**check one**)
☐ first month **OR** ☐ second month \$ 560.00
■ Late charges if rent is not paid on or before (Par. 6) 3rd ■ Daily late charge (Par. 6) \$ 10.00
■ Initial late charge (Par. 6) \$ 75.00 ■ Animal violation charges (Par. 27)
Initial \$ 100.00 Daily \$ 10.00
■ Returned-check charge (Par. 6) \$ 50.00 ■ Monthly trash / waste (if any) \$ _____
■ Monthly animal rent (if any) \$ 0.00 ■ Monthly pest control (if any) \$ _____
■ Utilities paid by owner (Par. 7): (**check all that apply**) ☐ electricity, ☐ gas, ☐ water, ☐ wastewater, ☐ trash/recycling,
☐ cable/satellite, ☐ master antenna, ☐ Internet, ☐ stormwater/drainage, ☐ other _____
■ Utility connection charge (Par. 12) \$ 50.00 ■ You are: (**check one**) ☒ required to buy insurance **OR**
☐ not required to buy insurance (Par. 8)
■ Agreed reletting charge (Par. 10) \$ 1054.00
■ Special provisions (Par. 9): No checks after the 10th. Please see rent concession addendum for discounts. Monthly amenity fee of \$60.00 for cable, trash, and pest control.

Signatures and Attachments

42. Attachments. We will provide you with a copy of the Lease as required by statute. This may be in paper format, in an electronic format if you request it, or by e-mail if we have communicated by e-mail about this Lease. Our rules and community policies, if any, will be attached to the Lease and given to you at signing. When an Inventory and Condition form is completed, both you and we should retain a copy. The items checked below are attached to and become a part of this Lease and are binding even if not initialed or signed.

- ☒ Access Gate Addendum
☐ Additional Special Provisions
☒ Allocation Addendum for: ☐ electricity ☒ water ☒ gas
☐ central system costs ☐ trash/recycling ☐ cable/satellite
☒ stormwater/drainage ☒ services/government fees
☒ Animal Addendum
☐ Apartment Rules or Community Policies
☐ Asbestos Addendum (if asbestos is present)
☒ Bed Bug Addendum
☒ Early Termination Addendum
☐ Enclosed Garage, Carport, or Storage Unit Addendum
☐ Intrusion Alarm Addendum
☒ Inventory & Condition Form
☐ Lead Hazard Information and Disclosure Addendum
☐ Lease Contract Addendum for Units Participating in Government Regulated Affordable Housing Programs
☐ Lease Contract Guaranty (guaranties, if more than one)
☐ Legal Description of Apartment (optional, if rental term longer than one year)
☐ Military SCRA Addendum
☒ Mold Information and Prevention Addendum
☐ Move-Out Cleaning Instructions
☐ Notice of Intent to Move Out Form
☐ Parking Permit or Sticker (quantity: _____)
☒ Rent Concession Addendum
☒ Renter's or Liability Insurance Addendum
☐ Repair or Service Request Form
☐ Satellite Dish or Antenna Addendum
☐ Security Guidelines Addendum
☐ PUC Tenant Guide to Water Allocation
☐ Utility Submetering Addendum: ☐ electricity ☐ water
☐ gas
☒ Other Trash Removal - Flat Fee
☐ Other BAR-B-QUE GRILL ADDENDUM
☐ Other _____
☐ Other _____

Name, address and telephone number of locator service (if applicable —must be completed to verify TAA membership under Par. 35):

After-hours phone number (281) 493-9518
(Always call 911 for police, fire, or medical emergencies.)

Date Form is filled out (same as on top of page) 05/17/2019

Signature of Tenant
Joselyn Dossie

Signature of Owner Representative
Erick Jovan

43. Class Action Waiver. You agree that you will not participate in any class action claims against us or our representatives. You must file any claim against us individually, and **you expressly waive your ability to bring, represent, join or otherwise maintain a class action, collective action or similar proceeding against us in any forum.**

YOU UNDERSTAND THAT, WITHOUT THIS WAIVER, YOU COULD BE A PARTY IN A CLASS ACTION LAWSUIT. BY SIGNING THIS LEASE, YOU ACCEPT THIS WAIVER AND CHOOSE TO HAVE ANY CLAIMS DECIDED INDIVIDUALLY. THE PROVISIONS OF THIS PAR. 43 SHALL SURVIVE THE TERMINATION OR EXPIRATION OF THIS LEASE.

Resident initials: JD

You are legally bound by this document. Please read it carefully. A facsimile or electronic signature on this Lease is as binding as an original signature.

Before submitting a rental application or signing a Lease, you may take a copy of these documents to review and/or consult an attorney. Additional provisions or changes may be made in the Lease if agreed to in writing by all parties.

You are entitled to receive a copy of this Lease after it is fully signed. Keep it in a safe place. This lease is the entire agreement between you and us. You are NOT relying on any oral representations.

Resident or Residents (all sign below)

(Name of Resident) _____ Date signed _____

(Name of Resident) _____ Date signed _____

(Name of Resident) _____ Date signed _____

(Name of Resident) _____ Date signed _____

(Name of Resident) _____ Date signed _____

(Name of Resident) _____ Date signed _____

Owner or Owner's Representative (signing on behalf of owner)

Address and phone number of owner's representative for notice purposes

13101 Briar Forest

Houston, TX. 77077

(281) 493-9518

Texas IDENTIFICATION CARD

USA
TX

4a ID: 28794530
4b Iss: 08/20/2017 4b Exp: 01/07/2022
3 DOB: 01/07/1982
1 DOSSIE
2 JOYCLYN MARIE
8 6627 VALERIAN LANE
KATY TX 77449

16 Hgt 5'-04" 15 Sex F 18 Eyes BRO
5 DD 03619780085200147812

